

25PSCV00509 25PSCV00509

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Case Number: 25PSCV00509 Hearing Date: June 23, 2026 Dept: H

Caballero, et al. v.

Titanium Solar, et al.,

Case No. 25PSCV00509

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiffs Maria Caballero's and David

Acevedo's Application for Default Judgment is DENIED without prejudice.

Background

Plaintiffs Maria Caballero

and David Acevedo (together, "Plaintiffs") allege as follows:

Plaintiffs

are the owners of the property located at 15739 Novak St. in Hacienda Heights

("subject property"). On July 10, 2022, Plaintiffs were contacted by Jordan

Tafoya ("Tafoya"), a representative of Voltaic LLC ("Voltaic"), for the purpose

of soliciting sales for solar panel installation at the subject property.

Tafoya advised Plaintiffs that Voltaic partnered with a number of solar panel installers, including Titanium Solar LLC ("Titanium"). Plaintiffs thereafter entered into a contract with Titanium for solar panel installation at the subject property. On July 18, 2022, Titanium's technicians inserted nails throughout the subject property's roof which created holes and caused water to leak into the subject property.

On May 8, 2025,

Titanium's default was entered.

On July 14, 2025,

Plaintiffs filed a First Amended Complaint, asserting several causes of action against Voltaic, Titanium, and Does 1-10, including, among others, breach of contract, breach of warranty, fraudulent misrepresentation, and negligence.

On December 16, 2025,

Voltaic filed a "Notice of Settlement."

On January 26, 2026, an

"Order for Determination of Good Faith Settlement by Defendant Voltaic LLC

Pursuant to CCP Section 877.6(a)(2)" was entered.

On January 28, 2026,

Plaintiffs dismissed Voltaic, with prejudice.

An Order to Show Cause

Re: Default Judgment is set for June 23, 2026.

Discussion

Plaintiffs'

Application for Default Judgment is denied without prejudice. The following

defects are noted:

1. Plaintiffs are requested to

address the language set forth in Paragraphs 1(e) (i.e., "CUSTOMER and

CONTRACTOR hereby agree that, in the event of any breach of this Contract by

CONTRACTOR, CUSTOMER shall not be entitled to, and hereby waives, any claim of

consequential or incidental damages to the extent permitted by California law.

In no event shall CONTRACTOR be Titanium Solar LLC [sic] responsible to

CUSTOMER, in damages, for any amount in excess of the amount of this contract. Any

action for breach of this Contract must be commenced within one (1) year of the

breach") and 12 (i.e., "UNDER NO CIRCUMSTANCE SHALL CONTRACTOR BE LIABLE FOR

INCIDENTAL, CONSEQUENTIAL, OR SPECIAL DAMAGES. LOSS OF USE, PROFITS,

PRODUCTION, AND/OR REVENUES ARE SPECIFICALLY AND WITHOUT LIMITATION EXCLUDED. .

.) of the Agreement. Also, many of the damages identified by Plaintiffs appear

to be incidental damages (i.e., relocation of items, moving supplies, storage

unit rental, relocation expenses, mattress and dresser replacement, Southern

California Edison settlement bill).

2. Plaintiffs have not

provided the Court with any documentary evidence of the purported damage to the roof, ceilings, walls and personal property.

3. Plaintiffs' respective

declarations lack the factual detail set forth on pages 5 and 6 of the

accompanying Case Summary. Plaintiffs' Paragraph 3 states only as follows: "[a]fter I entered into the Home

Improvement Agreement with Titanium Solar LLC they began to install a solar

system on the roof of my home which ultimately destroyed the roof of my home,

including, but not limited to driving nails penetrating through the roof of my

home exiting through the interior ceiling causing significant water damage to

the interior of my home. Titanium Solar LLC, directly, and through their

agents, continue to assure me that repairs and modifications to the solar

system and repairs to my roof would be made up to September of 2024 when they

stopped communicating and providing any specific information as to when my

solar system would be properly functioning and my roof would be repaired."

Plaintiffs have not advised when Titanium began the installation work, when

they allegedly caused damage to the roof, and when they were told repairs and

modifications would be made. Plaintiffs have failed to attach any of the referenced communications

and/or photographs.

Accordingly,

the application is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues. Any subsequent default prove-up application must be full and complete in and of itself. The Court will not entertain piecemeal submissions.